

25STCV08480 25STCV08480

County: los-angeles

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Case Number: 25STCV08480 Hearing Date: July 6, 2026 Dept: 732

Thelma Romero Ortiz v. LPQ USA, LLC et al.

Monday, July 6, 2026

CASE NUMBER: 25STCV08480

OPPOSED

Plaintiff Thelma

Romero Ortiz's Motion to Quash Subpoenas to Nonparties Kaiser Permanente – Central ROI Unit (Medical Records Dept.), Kaiser Permanente — Central ROI Unit (Psych Records Dept.), Kaiser Permanente (Billing Dept.), and Clinica Monsenor Oscar A. Romero

Facts:

This is an action for employment discrimination and harassment. The Complaint alleges as follows. Plaintiff Thelma Romero Ortiz ("Plaintiff") worked for Defendant LPQ USA, LLC, and was subjected to sexually harassing comments and physical contact by a supervisor. (Complaint ¶¶ 8, 23, 25, 26.) Following a return from medical leave after suffering a miscarriage, Plaintiff's hours were dramatically reduced. (Complaint ¶¶ 33–36.) Plaintiff complained about the lack of hours, but her complaints were not addressed. (Complaint ¶ 39.) Plaintiff went on medical leave to care for her mother, but was not thereafter permitted to return to work. (Complaint ¶ 41.)

Procedural History: Plaintiff

filed the Complaint on March 24, 2025, alleging 12 causes of action:

1.

FEHA Discrimination

2.

FEHA Harassment

3.

FEHA Retaliation

4.

Failure to Accommodate

5.

Interactive Process Violation

6.

Failure to Prevent FEHA Violations

7.

Pregnancy Leave Interference

8.

CFRA Violation

9.

Declaratory Relief

10. Wrongful

Termination

11. California

Equal Pay Act

12. Unfair

Competition

Default

was entered against Defendant Eugenio Martinez on June 6, 2025.

This

court on March 27, 2026, denied Defendant Martinez's motion to vacate default.

Plaintiff

filed the present motion to quash subpoena on April 28, 2026.

Defendants

filed an opposition on June 22, 2026.

Analysis

I.

MOTION TO

QUASH DEPOSITION SUBPOENA

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc. § 1987.1, subd. (a).) A party may bring a motion under this section. (Code Civ. Proc. § 1987.1, subd. (b)(1).)

Plaintiff Thelma Romero Ortiz ("Plaintiff")

moves to quash four subpoenas issued by Defendant LPQ USA, LLC ("Defendant") to certain medical providers, Kaiser Permanente – Central ROI Unit (Medical Records Dept.), Kaiser Permanente — Central ROI Unit (Psych Records Dept.), Kaiser Permanente (Billing Dept.), and Clinica Monsenor Oscar A. Romero. (Separate Statement at p. 1.)

The subpoena to Kaiser's Medical Records

Department seeks essentially all medical records related to Plaintiff from January 1, 2018, to the present. (Schulman Decl. Exh. 1.) The subpoena to

Kaiser's Psych Records Department seeks all psychological records relating to Plaintiff from January 1, 2016, to the present. (Schulman Decl. Exh. 1.) In a similar vein, the subpoena to Kaiser's Billing Department seeks all billing records related to Plaintiff from January 1, 2018, to the present. (Schulman Decl. Exh. 1.) And the subpoena to Clinica Monsenor Oscar A. Romero seeks all medical and billing records dating from January 1, 2018. (Schulman Decl. Exh. 1.)

Plaintiff argues that these subpoenas intrude upon her private medical and psychological records, and are overbroad in that they are not limited to the particular injuries, disabilities, and distresses that she has placed at issue in the present action. (Motion at pp. 3–6.) Plaintiff asks that the subpoenas be quashed or modified to seek a narrower category of documents, and if not quashed, that a protective order be entered limiting the use of the documents. (Ibid.)

Defendant in opposition argues that Plaintiff has placed at issue various portions of her medical and mental health history by pleading discrimination and harassment based on her pregnancy, a miscarriage, and various undisclosed disabilities. (Opposition at pp. 10–13.) Defendant further argues that discovery into Plaintiff's mental health records is warranted by her alleged emotional distress damages. (Opposition at p. 11.) Defendant argues that it has agreed to limit its subpoenas as to physical medical records to those created contemporaneously with Plaintiff's employment — i.e. September 2022 to January 2025 (Opposition at p. 9) — and has agreed to enter into a protective order that covers Plaintiff's medical records, which it is presently negotiating. (Assadi Decl. ¶ 8.)

The California Constitution protects an individual's right to privacy. (Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1013.) The right to privacy extends to medical records. (John B. v. Superior Court (2006) 38 Cal.4th 1177, 1198.) Communications between patients and their physicians or psychotherapists are also protected by statutory privileges. (Evid. Code §§ 994 [physician-patient], 1014 [psychotherapist-patient].)

None of these protections or privileges is absolute. Physician-patient privilege does not exist if the communication sought is "relevant to an issue concerning the condition of the patient if such issue has been tendered by . . . the patient." (Evid. Code § 996, subd. (a).) In the constitutional privacy context,

“[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.)

“[W]hile the filing of a lawsuit may implicitly bring about a partial waiver of one's constitutional right of associational privacy, the scope of such 'waiver' must be narrowly rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by the fear of exposure of their private associational affiliations and activities. Therefore . . . an implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 842.) “[T]he courts have noted that the patient, in raising the issue of a specific ailment or condition in litigation, in effect dispenses with the confidentiality of that ailment and may no longer justifiably seek protection from the humiliation of its exposure. Second, the exception represents a judgment that, in all fairness, a patient should not be permitted to establish a claim while simultaneously foreclosing inquiry into relevant matters.” (Manela v. Superior Court (2009) 177 Cal.App.4th 1139, 1148–1149.)

The subpoenas are overbroad as framed. Under the above authority, Plaintiff may be held to have waived privacy protections and applicable privileges as to medical and mental health records related to specific ailments tendered by the present action. Defendants have indicated that these conditions consist of Plaintiff's pregnancies and miscarriages occurring during the period of her employment with Defendant. (Opposition at p. 11.) Defendant argues that Plaintiff identifies in her Complaint “other disabilities,” for which it may seek records. (Opposition at p. 11; Complaint ¶ 21.) But the subpoenas are susceptible to narrowing by limitation to the categories of pregnancy and miscarriage, and any other potential disabilities at issue may be ascertained from Plaintiff through interrogatories.

Likewise,

the request for mental health records is properly limited to the ailments tendered by Plaintiff in this action. The Complaint pleads Plaintiff's suffering of "profound pain and emotional distress, anxiety, depression," "emotional and mental distress and aggravation," and "mental pain and anguish and emotional distress." (Complaint ¶¶ 43–45; Prayer at p. 26.) Plaintiff characterized her emotional distress in response to Defendant's interrogatories as follows:

[E]motional distress, as manifested through depression, anxiety, loss of sleep, insomnia, feeling humiliated, fear, feeling as an inconvenience, anguish, nervousness, feeling worthless, loss of self-esteem, grief, embarrassment, anger, feeling wound-up, tense, and restless, fatigue, irritability, loss of energy, feeling sad, feeling empty, concentration problems, upset stomach, headaches, nausea, weepiness, uncontrollable bouts of crying, weight loss, feelings of no longer wanting to go places, no longer enjoy all of the things that previously made her feel happy, and finding it hard to get up in the morning.

(Assadi Decl. Exh. D [Form Interrogatory No. 212.2].)

The subpoenas for mental health records are thus properly limited to the distress placed at issue by the above interrogatory response.

Accordingly, the motion to quash is GRANTED in part. The subpoenas for medical records and billing records issued to Kaiser Permanente – Central ROI Unit (Medical Records Dept.), Kaiser Permanente (Billing Dept.), and Clinica Monsenor Oscar A. Romero, are limited to documents related to Plaintiff's pregnancy and miscarriage, for the period dating from September 1, 2022 through January 31, 2025, the date range proffered by Defendant.

The subpoena to Kaiser Permanente — Central ROI Unit (Psych Records Dept.) is limited to records relating to distress, depression, anxiety, loss of sleep, insomnia, feeling humiliated, fear, feeling as an inconvenience, anguish, nervousness, feeling worthless, loss of self-esteem, grief, embarrassment, anger, feeling wound-up, tense, and restless, fatigue,

irritability, loss of energy, feeling sad, feeling empty, concentration problems, upset stomach, headaches, nausea, weepiness, crying, weight loss, feelings of no longer wanting to go places, no longer enjoy all of the things that previously made her feel happy, and finding it hard to get up in the morning.[1]

Finally,
the parties are mutually amenable to a protective order to preserve Plaintiff's privacy with respect to any documents that are produced, and are presently negotiating the terms of such an order, it is premature to enter such order at the present time.

1.

Sanctions

"[I]n making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc. § 1987.2, subd. (a).)

Defendant

seeks sanctions in the amount of \$5,331.00, representing 14 hours of attorney work at \$330 per hour, plus 1.8 hours of attorney work at \$395 per hour. (Assadi Decl. ¶ 9.) Sanctions are not mandatory under Code of Civil Procedure § 1987.2, and the present motion is brought with substantial justification. Thus no sanctions are awarded.

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Superior Court of California

County of Los Angeles

Department 732

Thelma

romero Ortiz,

Plaintiff

v.

LPQ USA, LLC., et al.,

Defendants.

Case No.:

25STCV08480

Hearing Date: July 6, 2026

[TENTATIVE] RULING RE:

Plaintiff

Thelma Romero Ortiz's Motion to Quash Subpoenas.

Plaintiff

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The subpoena to Kaiser Permanente — Central ROI Unit (Psych Records Dept.) is limited to records relating to distress, depression, anxiety, loss of sleep, insomnia, feeling humiliated, fear, feeling as an inconvenience, anguish, nervousness, feeling worthless, loss of self-esteem, grief, embarrassment, anger, feeling wound-up, tense, and restless, fatigue, irritability, loss of energy, feeling sad, feeling empty, concentration problems, upset stomach, headaches, nausea, weepiness, crying, weight loss, feelings of no longer wanting to go places, no longer enjoy all of the things that previously made her feel happy, and finding it hard to get up in the morning.

Plaintiff to give notice.

Dated: July 6, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court

[1]

Plaintiff in her motion makes reference to a potential “first look” agreement, but does not describe the proposed parameters of any such agreement. (Motion at p. 6.) Such an agreement evidently refers to a situation where, if the subpoenaed entities cannot comply with the subpoenas as modified, the subpoenaed documents will be produced without limitation by subject matter to Plaintiff, who will then redact or withhold documents falling outside the subject-matter limitations described in this order, and then produce to Defendants the redacted, responsive records with a privilege log identifying the documents or redacted matters that have been withheld. (See *Roblin v. Costco Wholesale Corporation* (N.D. Cal., Dec. 19, 2023, No. 23CV01828RFLRMI) 2023 WL 8788759, at *2 [rejecting a proposed first look agreement].) It does not appear that the parties have conferred regarding such a procedure, and any such measures need only be contemplated if the subpoenas cannot be complied with as modified here.